Noesis documents, 8 Nov set: what changed and what is still open

Read in full on 8 Nov from your Drive: Documents 2 and 4 to 10 (headed "Draft for review · 8 November 2026"). Compared with the 4 Nov set and Cuan's 5 Nov execution checklist. Cuan has not edited anything. Statutory citations are the documents' own and are not verified by Cuan. CRO numbers are accepted as given and are correct everywhere they appear.

Not execution-ready, and the gaps are the same kind as before: no date, blank signing blocks, a tax route the notes call "dangerous", an unapproved bracketed IP price, review notes and the draft tag still in the text. Two documents are missing: **the 8 Nov versions of Documents 1 and 3 are not in the folder.** It holds only the 22 Oct versions of both (and Shane's 4 Nov "For Final Revision" copies elsewhere). A "00 Review Note for Pat" in the folder says ten documents were sent. Ask Shane to resend 1 and 3. I could not check anything in them.

1. Fixed since the 4 Nov set

- "(For Final Revision)" is gone from the mastheads and footers. It is replaced by "Draft for review · 8 November 2026" on every page, which also has to come out before signing.
- Planned names (Odin Labs, Tairseach and the others) are gone from Documents 2 and 4 to 10. Only the five incorporated companies are named, and future ones are generic ("Permitted Group Subsidiary", "Designated R&D Subsidiary").
- Scenario B is EUR 1.00 plus a 36-month Ring 1 API service level everywhere it appears (Docs 5, 6, 8, 9). IP price is one bracket everywhere: "[EUR 10.00: to be confirmed by Pat, John and the tax team; not approved by Shane]" (Docs 2, 7, 9, 10).
- No R&D credit percentage is stated in these ten (the 30 versus 35% clash is gone here; check Document 1).
- Document 4, the public constitution: participant percentages and share counts are removed; Article 6.4 now cites Article 12(b) correctly; Mac Enterprises is not named.

2. New in this set (Shane's 8 Nov decisions)

- **Asterial now 85 / 5 / 10:** NOESIS 850,000 Class A, Shane 50,000 Class B with the entrenched secondary right (5.0%, was 3.0%), Diarmuid Hudner 100,000 non-voting Class B (10.0%). The 4 Nov set had 97/3. Documents 1 and 3 (not seen) must match.
- **Succession (Doc 4 Art 6.1):** death or incapacity does not convert Class A; votes pass through a "Nominated Successor", then family trustees, a named family member, then personal representatives. Defined terms are in Docs 3 and 4.
- **Founder Cleanroom Sandbox:** a Sandbox Project is the Founder's, judged by field of use not hardware, with a 30-day NOESIS right of first refusal where there is direct commercial adjacency (Docs 2, 5, 6, 7, 8, 9, 10).
- **No grant-back:** subsidiary improvements stay with the subsidiary, with "no assignment, grant-back, exclusive licence, or pooling".
- **Ring 1 never licensed outside the group;** enterprise clients get only Derivative IP and compiled runtime access.
- **Future Rights Cut-Off (Doc 7 cl 2.1):** the Founder's assignment of future IP ends on the earlier of an Asterial Acquisition and Shane ceasing to be an Asterial director.
- Boxed review notes on Documents 2 and 4 to 10 propose fixes that wait for Shane or Pat.

3. Still wrong or open

Issue	Where
No date at the head of any deed; Pat's note: Doc 2 cl 4.1(c) requires date and time	Docs 2, 4 to 10; every execution date, witness and countersigning block is blank
"Statutory Instrument" label (Irish law term for secondary legislation); proposed "Deed" or "Executed as a Deed under Irish law" only	Docs 7 to 10 (Shane has it under review)
Cap table 86/8/6 still stands; Pat's pack has 83/17. Year 2 and 3 Class C arithmetic does not reconcile	Docs 2, 6. Stated 16.7/83.3 and 19.5/80.0; my count is about 16.5/83.5 and 18.9/81.1 (or 17.0 and 20.0 on a fixed base)
Good Leaver undefined; leaver prices differ; Class C source and pool size unstated; family class "Class F / Class B" unsettled; Class B voting differs across Docs 3, 4, 6	Docs 2, 4, 6. A confidentiality breach is EUR 0.01 in Doc 4 Art 12(b) but 75% of fair value in Art 6.4
Tax route "dangerous": cheap shares first, then IP at a nominal price; CGT, gift, stamp duty and de-grouping exposure at market value; share-for-share steps and 85% holding versus a 90% test not settled	Doc 2 cl 3.2(b); Docs 7, 9, 10. Tax team to model; Shane to approve the price
Step order: s238 approvals at Step 1 (Docs 2, 10) but inside the Step 3 deeds (Docs 7, 8, 9); Doc 10 is signed at Step 4 although it directs Steps 1 to 3; Doc 5 recites Step 2 holdings at Step 1	Docs 2, 5, 7, 8, 9, 10
Only NOESIS and Asterial seal Doc 10 yet it binds three more; nothing moves Zubelsala, SanCelvio, Velocity under NOESIS; Doc 9 calls NOESIS their parent without a step	Docs 7, 9, 10
Doc 8 lacks payment, term, termination, confidentiality, GDPR Article 28 terms and the	Doc 8

rate card; the 36-month service level is empty; 12-month liability cap leaves a new licensee with nothing	
Doc 6 lacks vesting mechanics, Good Leaver, confidentiality covenants, pre-emption, NOESIS drag and tag, term and termination	Doc 6
Four adherence forms bind different documents; Docs 6, 7, 9 not all covered	Docs 5, 7, 8, 9
"Never licensed outside the group" stated without the Asterial Acquisition exception	Docs 2, 5, 6, 7, 10 (Docs 8 and 9 state the exception)
Mac Enterprises is not a legal person; separation tested by hardware in some places, by field of use in others; "core company repositories" undefined	Docs 2, 4, 5, 6, 7, 8, 9
No Company Secretary named; s43 seals need a countersignature that is not Shane's; arbitrator chosen by the Class A Director in Doc 5 cl 7.1	Docs 2, 4, 5 to 10
Doc 8 cites "Commission Regulation (EU) 2026/877 (Technology Transfer Block Exemption)": Cuan could not verify the number. KDB sections cited inconsistently (769I, 769L and others)	Docs 8, 9, 10

4. Your own position (for you; keep this out of written notes to Shane)

- **Your title is inconsistent:** "Finance and Statutory Execution Lead", "Company Secretary and Finance Lead", "Legal Governance Lead and Group Tax Adviser". Tom's 5 Nov Action Plan records you as interim chair with responsibility for legal affairs, and your brief says secretary. Decide one title and one office.
- **Independence:** you verify the protocol (Doc 2) and are the witness (Doc 10 Part B.1) while named as a 2% executive holder. Doc 2 cl 4.1(a) asks for an independent witness. Pat's note proposes a non-party witness.
- **You are not appointed director or secretary** in Docs 6 to 10, although the indemnity covers "the Founder and each Director". The independent-advice acknowledgement in Doc 6 note 8 names only Pat.
- **Your work from the notes:** pull the company registers (Doc 2, 3.2(a)); draft separate dated s193 resolutions for each company (Docs 2, 7); confirm countersignatories; draft Doc 8 terms with Pat; a repository register; restate the Rider items. Target is 23 Nov.
- Tom's Action Plan says Shane is the sole founder and Tom, Pat and you are "the first in" (the "four founders" wording is to be corrected in the company matrix and materials), and that Tom is still reviewing the shareholding terms.

5. Readiness by document

Doc	Ready?	Top blockers
1, 3	Not seen	8 Nov versions missing from the folder
2	No	IP price bracketed; "dangerous" tax route; late and joint s238 approvals; no Secretary; Doc 10 signed too late
4	No	Brackets in Art 6.1(d) (family class, 60 days); no authorised capital; Good Leaver; subscriber and seal blocks; review boxes to strip
5	No	Step 1 and Step 2 recital conflict; arbitrator; countersigning; undefined Mac Enterprises and repositories
6	No	Undated; Good Leaver and leaver prices; circular references in cl 1(b) and 7(d); open Class B and Class C
7	No	No date; price and tax route; defective s238 approvals; "Assigned IP" undefined; contributor assignments missing
8	No	No payment, term, termination or GDPR terms; empty service level; no rate card
9	No	Shane's personal uncapped warranties; no asset schedule; CGT and stamp duty route; wrong tax sections; two companies bound but not signing
10	No	Tax model unfinished; Rider under Shane's own review; only two companies seal; witness

Cuan's 8 Nov review of read-only text; page images, comments and tracked changes were not read. A full per-document list is in the dossier note of 8 Nov.